

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 28, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal, Dr. Mark Rinne (arriving at 6:03 p.m.), Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Johnson, and pursuant to support received by Mr. Cook and Mr. White, Agenda Item #22 was removed from the Consent Agenda. Mr. Shanor recused himself from voting participation on the item due to an affiliation with the State Land and Investment Board (Consent Agenda Item #18), and vacated Council Chambers. Mr. Luna moved to approve remaining Consent Agenda items, seconded by Mr. Johnson. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Shanor returned to Council Chambers.

[CA] Minutes from Regular Meeting of the Governing Body on August 14, 2017. Motion (per Consent Agenda) carried.

Mr. Johnson moved to suspend the rules to change the order of the agenda by moving Agenda Item #22 (Resolution proclaiming “Purple Heart Day” and the City as a Purple Heart City) to be acted upon prior to Agenda Item #7 (Vouchers), seconded by Mr. Roybal. Motion carried. Voting “yes” -- all members of the governing body.

RESOLUTION – Proclaiming ‘Purple Heart Day’ and the City of Cheyenne, Wyoming, to be a Purple Heart City. Speaking in support of the resolution were: Brian Olson, Commander, local chapter of the Military Order of the Purple Heart; Retired Lt. Col. Barry Gostas; Larry Barttelbort, Director, Wyoming Veterans Commission; Ted Gostas; Floyd Watson, Save American Veterans; Major General Luke Reiner, Wyoming Military Department; Lisa Olson Snyder and Peter Howard. Topics discussed included: History of the Purple Heart medal; recipient qualifications; recognition of the City as the first city in Wyoming to be designated as a Purple Heart City; importance of the City’s military support in Cheyenne, and consideration of veterans for positions of leadership and service on boards and committees. Ted Gostas commented on his military experience, including his time as a POW (prisoner of war) which resulted in his receiving two Purple Heart medals. Mr. Luna moved to adopt, seconded by Dr. Rinne. Discussion included expression of appreciation to those serving in the military and particularly to Mr. (Ted) Gostas for his leadership and courage. It was noted that community events will be planned to celebrate Purple Heart Day in 2018. Motion carried. Voting “yes” -- all members of the governing body. (#5872)

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Cook. Inquiry was made regarding vouchers payable to Kutak Rock, LLP (professional services in connection with calculation of arbitrage rebate on parking structure bonds) and the purpose of services provided, and AVI Engineering (professional services for the 17th St. Streetscape Project), regarding project oversight and sustainable life of the infrastructure. Sylvia Hackl, City Attorney, advised further information on services by Kutak Rock would be provided to governing body members, and Jim Voeller, City Engineer, provided information available on the 17th St. Streetscape Project. Mr. Luna moved to remove the voucher payable to Kutak Rock LLP from the voucher payment list, seconded by Mr. Johnson. Motion carried. Voting “yes” -- all members of the governing body. Main motion to approve, with the exception of the voucher payable to Kutak Rock LLP, carried. Voting “yes” -- all members of the governing body with the exception of Mr. Johnson voting “no”.

ORDINANCE – 3rd READING - Annexing to the City of Cheyenne, Wyoming all of Lot 1, Block 1, Taxidermy Addition and the north 305.23’ except north 150’ of Tract 14, Sunny Side Addition and the north 50’ of the south 300’ of the west 91’ of Tract 14, Sunny Side Addition; situated in the SW¹/₄SW¹/₄ of Section 27, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming (located northeast of the intersection of Ridge Road and East Pershing Boulevard). Reporting for the Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Mr. Roybal moved to amend by substitute dated 7/31/2017, seconded by Mr. Luna. Upon inquiry, Eric Hammer, Planning and Development office, explained the substitute corrects the legal description references shown as “Sunny Side” to “Sunnyside”. Motion to amend carried. Voting “yes” -- all members of the governing body. Main motion as amended carried. Voting “yes” -- all members of the governing body. (#4196)

ORDINANCE – 3rd READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MU – Mixed-Use (County) to MUB Mixed-Use Business Emphasis for all of Lot 1, Block 1, Taxidermy Addition and the north 305.23’ except north 150’ of Tract 14, Sunny Side Addition and the north 50’ of the south 300’ of the west 91’ of Tract 14, Sunny Side Addition, Laramie County, Wyoming (located northeast of the intersection of Ridge Road and East Pershing Boulevard). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Mr. Roybal moved to amend by substitute dated 7/31/2017, seconded by Mr. Luna. Eric Hammer, Planning and Development office, explained the substitute corrects the legal description references shown as “Sunny Side” to “Sunnyside”. Motion to amend carried. Voting “yes” -- all members of the governing body. Main motion as amended carried. Voting “yes” -- all members of the governing body. (#4197)

ORDINANCE – 2nd READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, Section 5.1.3 Official Zoning Map, and Section 5.6.2. PUD – Planned Unit Development District, of the Unified Development Code, changing the zoning classification from PUD Planned Unit Development to PUD Planned Unit Development for a portion of Lot 2, Block 1 of Buffalo Ridge Estates, 10th Filing, City of Cheyenne, Laramie County, Wyoming (located west of and adjacent to Sunflower Road, south of Sagebrush Ave). Mr. Roybal moved to approve on second reading, seconded by Mr. Luna. Comment was made in support of the project affiliated with the zone change and how it will benefit youth after school and recreational

activities, and drainage improvements planned for the area pursuant to a proposed Memorandum of Understanding (Agenda Item #23(f)). Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE – 2nd READING - Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Sections 1.4.4.a and c and Section 5.1, Table 5-1 of the UDC to rename and clarify the definition for Group dwelling to clarify the definitions for Adult Care – Assisted Living, and Adult Care – Nursing Home Land Uses and adding residential and nonresidential zoning districts where Group housing would be allowed as a conditional use. Susana Montana, Planning and Development office, requested the ordinance be withdrawn from the agenda to allow for further review by staff. Upon query and with no objection raised by members of the governing body, Mayor Orr announced the item was being withdrawn from the agenda.

ORDINANCE – 2nd READING –Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 5.1 of the Cheyenne Unified Development Code (UDC) to allow utility stations within the AG, AR, and AD zoning districts after an administrative use approval. Mr. Roybal moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE – 2nd READING –Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 1.4.4 and 5.1 of the Cheyenne Unified Development Code (UDC) to allow home occupations as a permitted use within the NB, CB, CBD, LI, and HI zoning districts. Mr. Roybal moved to approve on second reading, seconded by Mr. Cook. Upon inquiry, Eric Hammer, Planning and Development office, explained the ordinance was brought forward by staff and the public and stated there are no plans in the near future to further review land uses involving home occupations. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, a portion of the S½SE¼ Section 22, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located north of and adjacent to Dell Range Boulevard, east of Griffith Avenue). Mr. Roybal moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium-density Residential to MR Medium-density Residential for a portion of the S½SE¼ Section 22, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located north of and adjacent to Dell Range Boulevard, east of Griffith Avenue). Mr. Roybal moved to approve on second reading with staff conditions #1, 2 and 3, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE – 1st READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Sections 1.4.3 and 5.7.1 of the Cheyenne Unified Development Code (UDC) to clarify the definition of ‘through lot’ for accessory structure setback

purposes – referred to Public Services Committee. (Sponsor - Mr. Roybal)

RESOLUTION – Authorizing the addition of twenty-nine (29) structures and removal of two (2) structures in the Downtown Cheyenne Historic District from the Contributing Structures List maintained by the City’s Planning office. Reporting for Finance Committee, Mr. Shanor moved to adopt, seconded by Mr. Roybal. Mr. Shanor moved to postpone to September 11, 2017 pursuant to staff request, seconded by Mr. Roybal. Motion to postpone carried. Voting “yes” -- all members of the governing body present.

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Highland Park, Fourth Filing, a replat of the east 63.63 feet of Tract 13, Highland Park, Third Filing, situated in the SE1/4 of Section 5, T.13N., R.66W., 6th PM., Laramie County, Wyoming (located south of and adjacent to Persons Road, west of Avenue B-6). Motion (per Consent Agenda) carried. (#5873)

[CA] RESOLUTION – Authorizing submission of a Federal Mineral Royalty Capital Construction account grant application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to complete the 26th Street Interceptor Project. Motion (per Consent Agenda) carried. (#5874)

RESOLUTION – Authorizing a street name change for a portion of Summit Drive lying between Ridge Road and College Drive, City of Cheyenne, Laramie County, Wyoming. Tom Mason, Director, Metropolitan Planning Office, referenced and discussed a map he had previously provided to governing body members (on file with City Clerk’s office), and explained the intent of the resolution is to provide consistency in the street name for Storey Blvd. corridor, which will also assist with emergency response services for the area. He advised there were 18 addresses that would be affected by the name change and time would be provided for residents to change their address information relative to mail delivery. He noted there is another Summit Drive, which isn’t connected to this portion of Summit Drive, elsewhere in the City that further convolutes the issue. Mr. Roybal reported there was no recommendation on the item from Public Services Committee. Mr. Roybal moved to adopt, seconded by Dr. Rinne. Upon inquiry, Mr. Mason stated the GIS system can be quickly updated as soon as it is legally appropriate to do so, and that contact will be made to Google maps about updating its mapping information. Comment was made regarding planned apartment units slated to be built in the area and making the street name change prior to additional development along the corridor. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Johnson voting “no”. (#5875)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to execute a Wyoming State Historical Records Advisory Board grant agreement for digitization of historic Cheyenne building plans. Motion (per Consent Agenda) carried. (#5876)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to enter into a Memorandum of Understanding with the Board of County Commissioners of Laramie County, Wyoming, to submit a joint application for a grant award under the Edward Byrne Memorial Justice Assistance Grant Program. Motion (per Consent Agenda) carried. (Res. #5877/Cont. #6714)

[CA] Contract between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for school resource officers for the 2017-2018 school year and summer school 2018. Motion (per Consent Agenda) carried. (#6715)

Memorandum of Understanding between the City of Cheyenne, Wyoming, and Cheyenne Firefighters Local Union No. 279, International Association of Firefighters, for the purpose of clarifying the intent of Section 23, Working in a Higher Job Rank. Mr. Shanor moved to approve, seconded by Mr. White. Mr. Shanor moved to postpone to September 11, 2017 pursuant to staff request, seconded by Mr. Johnson. Motion to postpone carried. Voting “yes” -- all members of the governing body.

[CA] Agreement for Juvenile Probation Services between Laramie County, Wyoming and the City of Cheyenne, office of Youth Alternatives. Motion (per Consent Agenda) carried. (#6716)

[CA] Co-sponsorship of a Grant Agreement (along with Laramie County and the Cheyenne Regional Airport Board) with the Federal Aviation Administration for Federal Aviation Grant AIP #53 for the new Airport Terminal Project. Motion (per Consent Agenda) carried. (#6717)

[CA] Agreement to donate real property between the City of Cheyenne and Lowe’s Home Centers, LLC, pertaining to the Christensen Road Project. Motion (per Consent Agenda) carried. (#6718)

[CA] Memorandum of Understanding between Laramie County School District Number One, Sunflower Ridge L3C, and the City of Cheyenne, Wyoming, for drainage improvements, Buffalo Ridge Subdivision – referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 6457 between the City of Cheyenne and FCI Constructors of Wyoming LLC, for additions and renovations to the Waste Transfer Station Project – referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6498 between the City of Cheyenne and DHM Design Corporation to move funds from Task 4, Construction Administration, to Tasks 1 and 2, Preliminary and Final Design, for engineering design services for the Civic Center Commons / West Edge Project – referred to Finance Committee.

[CA] Consideration of Bid #S-1-18 for a contract between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, WY, for the 2017 Chip Seal, Part #2 Project. Motion (per Consent Agenda) carried (amount not to exceed \$814,363.00). (#6719)

[CA] Annual report to the City of Cheyenne regarding capital improvements made at the Airport Golf Course by the Airport Golf Club as required by Lease Agreement No. 2833. Motion to acknowledge receipt of the annual report (per Consent Agenda) carried.

Carol Intlekofer, City Clerk, noted the following was inadvertently not designated as a Consent Agenda item and read the title of the agenda item: Community Facilities Fees Report for Fiscal Year 2016-2017. Mayor Orr referred the item to Finance Committee.

Announcement was made that due to the Labor Day holiday on Monday, September 4, 2017, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 122, 2101 O'Neil Avenue, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, September 5, 2017 at 11:00 a.m. and Public Services Committee will meet Wednesday, September 6, 2017 at Noon.

Under other business, Jeff Dierksen discussed traffic issues on Pinto Lane; referenced a petition he filed last fall regarding mitigation of traffic conditions in the area, and requested an update on whether WYDOT had been contacted regarding interpretation by previous City engineering staff of the City's authority to change the speed limit to 25 m.p.h. in residential neighborhoods. Mr. Dierksen voiced concerns that conditions have deteriorated for years due to development in the area increasing the traffic volume and speeding by drivers accessing the area. Upon inquiry, Jim Voeller, advised he was unaware if WYDOT had been contacted; stated the City has done traffic studies in the neighborhood with law enforcement involvement, and noted the position of traffic engineer is no longer under the Engineering Department. Discussion included: Potential options to reduce speeding on Pinto Lane; street classification, history of development in the area affecting traffic conditions, and state law and jurisdictional issues concerning changes to speed limits in neighborhoods.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:03 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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